ENGELBERT MUDZIMBA

Versus

BEN MUCHENJE

And

BMJ ENGINEERING (PVT) LIMITED

HIGH COURT OF ZIMBABWE

CHIRAWU-MUGOMBA J

Harare, 2 October, 20 and 20 November 2025

S. M. GUWURIRO, for the plaintiff

T. MAZIKANA, for the defendants

TRIAL CAUSE – APPLICATION FOR ABSOLUTION FROM THE INSTANCE AT THE CLOSE OF PLAINTIFF'S CASE

CHIRAWU-MUGOMBA J: This matter was placed before me as a trial cause. The plaintiff's claim against the defendants jointly and severally, is for payment of the sum of USD 50,000 or the equivalent being the costs of reconstructing and replacing two chicken fowl runs and damages for loss of business and profit calculated at USD 5,000 per month with effect from the first of October 2019 until date of payment in full. In amplifying the claim in the declaration, the plaintiff makes the following averments. In May 2019, the plaintiff and the defendants entered into an oral agreement for the construction of specialised chicken fowl runs. These were to be constructed at a plot in Chegutu as per the specifications of Sable Chickens (private) Limited which had contracted the plaintiff by the 31st of August 2019. The fowl runs were to measure 600 square metres each on a fix and supply basis for a total sum of USD45, 000. Pursuant to this oral agreement, the plaintiff paid the defendants the sum of USD 50,000 from free funds borrowed at a bank rate of 7% per month. The defendants constructed the said fowl runs in a poor workmanship resulting in numerous defects which rendered them inhabitable for the chicken rearing project that the plaintiff intended to run. This poor workmanship constitutes a breach of contract which goes to the root.

In their plea, the defendants made the following averments. They admitted entering into an oral contract as per Sable Chicken's specifications. In paragraph 3, it is not clear whether it was an error where it is stated that the 'plaintiff nonetheless tenders the payment of the local currency equivalent 'on a one as to one basis which was the equivalent of $45 000 Zimbabwean dollars. Further that payments were not made until the plaintiff was satisfied at every stage. They denied that there was poor workmanship as alleged. The plaintiff ran out of funds after construction was completed in December 2019 and the site has since been abandoned and has fallen victim to vandalism and theft. The plaintiff sub contracted the inspection to his brother who misled the plaintiff and yet the structures were completed as contracted for. The defendants also repeated their tender for payment on a one-on-one basis.

At the close of the plaintiff's case, the defendants' legal practitioner moved a motion of absolution from the instance. I duly gave the two legal practitioners time to file the application and the response.

The plaintiff led evidence on his own behalf before his case was closed. His evidence can be summarised as follows. In May 2019, he sought the services of a professional to construct two fowl runs. He identified the first defendant on a website before arranging a physical meeting. He then took the first defendant physically to see the site and the latter confirmed that he possessed the expertise to construct the fowl runs, him being an engineer. The agreed cost was USD 45.000 on a fix and supply basis. There was no water supply and the first defendant assured the plaintiff that a well would be constructed. Although no formal contract was signed, terms were agreed upon through a draft contract and email correspondence. The contract was not signed over disagreement over a sum of USD175 daily charge but everything else was agreed upon. The specifics of the contract were that the defendants were to construct two chicken fowl runs measuring 600 square metres each from foundation to the walls and to trusses, wire mesh, roofing sheets and drinkers enough to accommodate twelve thousand chickens at a time. Payments were made in instalments and via cash in Zimbabwe and the defendants were updating plaintiff on progress. Payments were stopped due to noticeable poor workmanship. The roof was blown away in February 2020 and in August 2020 due to rains, the whole roof was blown away. Two reports were done on the state of the fowl runs with the second report having been a product of a pre-trial conference meeting where parties agreed to engage an independent person. The report by Engineer Chirume concluded that there is poor workmanship. Due to this fact, the plaintiff testified that he suffered losses which he amplified in his evidence.

The law on absolution from the instance has been set out in a plethora of cases. There is a difference as stated in the cases, on an application at the close of the plaintiff's and the defendant's case. See *Danha vs Mudzongachiso and anor,* 2018(1) ZLR 74(H) and the cases cited therein. See also *Moyo and anor vs. Methodist Church (Greendale)* 2018(1) ZLR 375(H). The learned authors, Herbstein and Van Winsen in, *The civil practice of the High Courts of South Africa,* Vol , 5th Ed, Juta and Co, 2016, at pp920-921, have stated as follows,

> "After the plaintiff has closed the defendant, before commencing his own case, may apply for the dismissal of the plaintiff's claim. Should the court accede this, the judgment will be one of absolution from the instance.
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> The correct approach to an application for absolution at the end of a plaintiff's case was stated by *Harms JA in Gordon Lloyd Page and Associates v Rivera*:
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> The test for absolution to be applied by a trial court at the end of a plaintiff's case was formulated in *Claude Neon Lights (SA) Ltd v Daniel* 1976 (4) SA 403 (A) ta 409G-H in these terms:
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> '... (W)hen absolution from the instance is sought at the close of plaintiffs' case, the test to be applied is not whether the evidence led by plaintiff establishes what would finally be required to be established, but whether there is evidence upon which a Court, applying its mind reasonably to such evidence, could or might (not should, nor ought to) find for the plaintiff. (*Gascoyne v Paul and Hunter* 1917 TPD 170 at 173; *Ruto Flour Mills (Pty) Ltd v Adelson* (2) 1958 (4) SA 307 (T).'
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> This implies that a plaintiff has to make out a prima facie case — in the sense that there is evidence relating to all the elements of the claim —to survive absolution because without such evidence no Court could find for the plaintiff *(Marine & Trade Insurance Co Ltd v Van der Schyff* 1972 (1) SA 26 (A) at 37G-38A; Schmidt Bewysreg 4th ed at 91-2). The test has from time to time been formulated in different terms, especially it has been said that the Court must consider whether there is 'evidence upon which a reasonable man might find for the plaintiff" (*Gascoyne* (loc cit)) — a test which had its origin in jury trials when the 'reasonable man' was a reasonable member of the jury (*Ruto Flour Mills*). Such a formulation tends to cloud the issue. The Court ought not to be concerned with what someone else might think; it should rather be concerned with its own judgment and not that of another 'reasonable person or Court. Having said this, absolution at the end of a plaintiff's case, in the ordinary course of events, will nevertheless be granted sparingly but when the occasion arises, a Court should order it in the interests of justice.

In the submissions to motivate the application for absolution from the instance, the defendants submitted that the plaintiff failed to establish liability for defendants to pay the total sum of USD50, 000. They submitted that in his testimony, the plaintiff stated that this total amount paid to the second defendant was inclusive of the security fence amount for which he was laying no claim. The plaintiff could not establish how much was specifically paid for the fowl runs. He thus also failed to establish a basis for the refund. He did not point out specifically in what manner the defendants failed to construct the fowl runs to the expected Sable Chickens standards. No evidence of poor workmanship was established.

They further submitted that the plaintiff in his evidence failed to establish a basis for claiming special damages. These are damages that should be established with precision. The plaintiff did not adduce evidence of direct losses allegedly incurred, and further failed to justify the reconstruction costs. Regarding claim for loss of business, the plaintiff did not substantiate this through production of a revenue analysis, invoices and receipts.

The plaintiff on the other hand submitted that it is on record that the defendants admitted that they entered into an oral agreement with the plaintiff for construction of a specialised fowl run. The defendants despite denying poor workmanship were willing to compensate the plaintiff in the sum of USD 45 000 but on the basis of 1:1 with the then Zimbabwean currency. They admitted receipt of USD45000 which went up to USD50000. The expert report of Engineer Chirume confirmed poor workmanship and parties agreed that there was no need for oral evidence from him thus leaving issues of quantum on refund and special damages. The evidence of the plaintiff on the amounts paid remains undisputed and it was paid directly to the first defendant. The plaintiff indeed proved that he suffered damages as claimed.

The submissions by both parties on the law on absolution from the instance are apt. I commend the legal practitioners for the thorough analysis of both the facts and the law. The task before the court is therefore to consider whether or not the plaintiff has set out a *prima facie* case, one which the court can say, needs to be explained or rebutted by the defendant. It is trite that courts are loath to grant applications for absolution from the instance at the close of a plaintiff's case since this potentially infringes upon a litigant's constitutionally protected right to equality and right to equal protection and benefit of the law and the right to a fair hearing – see sections 56(1) and 69 of the 2013 constitution. It also infringes potentially on the right to be heard under the rules of natural justice in that the plaintiff will not be afforded a chance to hear the defendant's case and cross examine witnesses. This of course is in the context of an order of absolution from the instance not barring the plaintiff from filing the claim as long as it still has not prescribed. It is trite that the standard of proof is the less onerous one of a *prima facie* case. To that end, it is worth repeating the test that has stood the test of time as enunciated in *Gascoyne* v *Paul and Hunter (supra)* and quoted with approval in the *Danha* case (*supra*) as follows:-

> "At the close of the plaintiff's case, therefore, the question which arises for the consideration of the court is, is there evidence upon which a reasonable man might find for the plaintiff? And

> if the defendant does not call any evidence, but closes his case immediately, the question for the court would be, 'is there such evidence upon which the court…. ought to give judgment in favour of the plaintiff'."

The plaintiff locates his claim in breach of contract that goes to the root. The plaintiff in my view the plaintiff must *prima facie* establish the following:-

a. Was there a contract between the parties?

b. What were the terms of the contract?

c. Was there breach of the contract?

d. What are the consequences of the breach, that is, what damages flow from the breach?

The authors *Herbstein & Van Winsen* (*Supra)* at pp 923 entreat courts to tread carefully in applications of this nature as follows;

> "In view of the principles set out above, it is clear that a trial court should be extremely wary of granting absolution at the close of the plaintiff's case. In deciding whether or not absolution should be granted, the court must assume that in the absence of very special considerations, such as the inherent unacceptability of the evidence adduced, the evidence is true. The court should not at this stage evaluate and reject the plaintiff's evidence. The test to be applied is not whether the evidence led by the plaintiff establishes what will finally have to be established. When the plaintiff relies on an inference the court will refuse the application for absolution unless it is satisfied that no reasonable court can draw the inference for which the plaintiff contends. A court may grant absolution from the instance at the close of a plaintiff's case if the plaintiff has failed to establish an essential element of the claim even though the defendant could have succeeded on exception or by way of special plea had the issue been raised by either procedure…"

This observation is critical as it guides the court on the manner of correctly establishing whether or not a *prima facie* case has been established. No doubt it is a delicate exercise anchored on what is already accepted, that courts are loath to grant such applications.

In my view, the plaintiff has established a *prima facie* case that the defendants need to answer. It has not been denied by the defendants that there was an oral contract and their actions of going to the site and constructing, bears credence to this. The plaintiff set out the terms of the contract and it is up to the defendants to rebut these. It is not denied that money was paid and received by the first defendant. It is not in dispute that a report by one Engineer Chirume was commissioned and it showed that the workmanship was not up to standard. The issue of how much should be refunded is a question that the trial court will establish after hearing all evidence. To note is that despite denial of liability, the defendants were willing to 'refund' the plaintiff Zimbabwean currency 45 000 on a one-to-one basis. This offer was not made on a without prejudice basis and the defendants must explain why it was

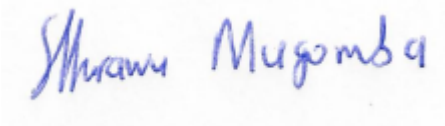
made in the face of denial of liability. As for the damages, the plaintiff has placed before the court figures that he perceives to be damages suffered. Whether they are valid or not is neither here nor there. The defendants must answer to these.

On costs, I perceive of no reason why they should not follow the costs.

DISPOSITION

I am loath to non-suit the plaintiff at this stage of the trial. He has in my view established a *prima facie* case that the defendants must answer to. Accordingly, it is ordered as follows:-

1. The application for absolution from the instance is dismissed.
2. The defendants shall pay costs jointly and severally one paying the other to be absolved.
3. The trial shall resume on a date to be allocated.



Guwuriro and Associates, plaintiff's legal practitioners.
Lunga, Mazikana Attorneys, Defendants' legal practitioners